

**AMENDMENT NO. 3
TO THE
AMENDED AND RESTATED AGREEMENT OF LIMITED PARTNERSHIP
OF
ENCAP ENERGY CAPITAL FUND XII, L.P.**

August 11, 2025

This Amendment No. 3 (this “**Amendment**”) to the Amended and Restated Agreement of Limited Partnership of EnCap Energy Capital Fund XII, L.P., a Delaware limited partnership (the “**Partnership**”), is made by EnCap Equity Fund XII GP, L.P., a Delaware limited partnership (the “**General Partner**”), and with the requisite written consent of the Investor Limited Partners. Capitalized terms not otherwise defined herein shall have the meanings assigned to them in the Agreement (as defined below).

RECITALS:

A. Reference is herein made to that certain Amended and Restated Agreement of Limited Partnership of the Partnership, dated effective as of May 17, 2023 (as amended by that certain Amendment to the Amended and Restated Agreement of Limited Partnership of the Partnership, dated as of June 30, 2023 and further amended by that certain Amendment to the Amended and Restated Agreement of Limited Partnership of the Partnership, dated as of August 31, 2023 and as further amended, restated, supplemented, waived and/or otherwise modified from time to time, the “**Agreement**”).

B. Section 12.1(a) of the Agreement provides that the Agreement may be amended by the affirmative vote or written consent of the General Partner and those Investor Limited Partners whose aggregate LP Percentages equal or exceed 66 2/3%.

C. Pursuant to and in accordance with Section 6.5 of the Agreement, the General Partner sought and received the consent of the LPAC to cause the Partnership to invest in PER Manager, LLC, a Delaware limited liability company (“**Penn Energy**”), an existing portfolio company of EnCap Energy Capital Fund VIII, L.P. (“**Fund VIII**”), indirectly through an investment in a continuation vehicle of Fund VIII (the “**Penn Energy Investment**”).

D. In connection with the foregoing, the General Partner proposes to amend the Agreement to implement certain technical changes to the Agreement to allow the Partnership to participate in the Penn Energy Investment, indirectly through Fund VIII, including (i) permitting the Partnership to make capital contributions and to satisfy any reinvestment or any return of distributions obligation related to the Penn Energy Investment, (ii) waiving any investment limitation that may be related to the Penn Energy Investment and (iii) permitting the General Partner to properly pass through any information, consent and/or voting request made by Fund VIII to the Partners.

NOW, THEREFORE, in consideration of the foregoing Recitals and the mutual covenants set forth herein and in the Agreement, it is agreed as follows:

Section 1. Amendment to Article II. Article II of the Agreement is hereby amended by inserting the following terms as new defined terms in appropriate alphabetical order:

“**Fund VIII**” shall mean, EnCap Energy Capital Fund VIII, L.P., a Texas limited partnership, collectively with its related parallel investment vehicles, alternative investment vehicles, co-investment vehicles, continuation vehicles and any successor vehicles thereto.

“**Fund VIII Agreement**” shall mean the governing agreements of Fund VIII, as amended, restated, supplemented or otherwise modified from time to time.

“**Fund VIII Limited Partners**” shall mean, as of the date of determination, the limited partners of Fund VIII, in their capacity as such.

“**Penn Energy**” shall mean PER Manager, LLC, a Delaware limited liability company, together with its direct and indirect subsidiaries and affiliates, in each case, as determined by the General Partner in its discretion.

Section 2. Amendment to Section 5.2. The following language is hereby added to the Agreement as a new Section 5.2(g) to read as follows:

Section 5.2(g). Notwithstanding anything to the contrary in this Agreement, the General Partner is authorized to cause the Partnership to make a capital commitment to Fund VIII, and make all capital contributions and payments related thereto as required by the Fund VIII Agreement. In order to effect the foregoing and notwithstanding anything in this Agreement to the contrary, (i) the General Partner shall be authorized to issue a Call Notice to the Partners in connection with the Partnership’s investment in Fund VIII, (ii) the General Partner may cause the Partnership to make capital contributions and other payments to Fund VIII to fund any of its obligations to Fund VIII, including any return of distributions made by Fund VIII, in each case in accordance with the terms of the Fund VIII Agreement, (iii) the Manager and its Affiliates may receive management fees, carried interest payments and other payments from Fund VIII and/or Penn Energy (excluding any amounts attributable to the Partnership’s investment in Fund VIII) and such amounts will not offset the Management Fee or otherwise be shared with the Partnership or the Limited Partners and (iv) the General Partner shall, on behalf of the Partnership, vote or consent on any such matter presented to the Partnership in its capacity as a Fund VIII Limited Partner, in such proportion as the Investor Limited Partners entitled to vote on such matter, having timely voted, shall have voted with respect to such matter. The General Partner shall notify the Investor Limited Partners of any vote or consent on any matter requested to be taken by the Partnership in connection with its investment in Fund VIII simultaneously upon receipt of such notification from Fund VIII and shall request the Investor Limited Partners’ vote or consent on such matter. Such notice to the Investor Limited Partners shall include any information or supplemental material furnished by Fund VIII, and shall also specify the date or dates by which the Investor Limited Partners must deliver to the General Partner the response of such Investor Limited Partners to the matter referenced in such notice, which shall be the date on which the Partnership must deliver to Fund VIII the response of the Partnership.

Section 3. Effective Date. Pursuant to Section 12.1 of the Agreement, this Amendment shall be effective and binding and the Agreement shall be deemed amended upon the approval hereof by the General Partner and those Investor Limited Partners whose aggregate LP Percentages exceed 66 2/3%. Each approval may be evidenced by execution of a written consent hereto. Any reference in the Agreement to “this Agreement” shall hereafter be deemed to refer to the Agreement as hereby amended.

Section 4. Ratification. The Agreement, as amended by this Amendment, is hereby ratified and confirmed, and the provisions of the Agreement shall remain in full force and effect except as expressly amended and modified as set forth in this Amendment.

Section 5. Amendments. This Amendment may be amended in the same manner in which the Agreement may be further amended; it being understood that the foregoing shall not in any respect restrict or otherwise affect the ability of the parties to the Agreement to amend such agreement as provided therein.

Section 6. Severability. Whenever possible, each provision of this Amendment shall be interpreted in such manner as to be effective and valid under applicable law, but if any provisions of this Amendment is held to be invalid, illegal or unenforceable in any respect under any applicable law or rule in any jurisdiction, such invalidity, illegality or unenforceability shall not affect any other provision or any other jurisdiction, but this Amendment shall be reformed, construed and enforced in such jurisdiction as if such invalid, illegal, or unenforceable provision had never been contained herein.

Section 7. Successors. This Amendment shall be binding on the executors, administrators, estates, heirs, legal representatives, successors and permitted assigns of the Partners.

Section 8. Governing Law. This Amendment and the rights and obligations of the parties hereunder shall be governed by and interpreted, construed and enforced in accordance with the laws of the State of Delaware.

Section 9. Counterparts. This Amendment may be executed in any number of counterparts, any one of which need not contain the signatures of more than one party, but all of such counterparts together shall constitute one Amendment. An electronic copy of a signature page hereto (or of any consent hereto) shall be deemed to be an original signature page hereto (or to such consent, as applicable) for all purposes. For the avoidance of doubt, a person’s execution and delivery of this Amendment (or any consent hereto) by electronic signature and electronic transmission (an “**Electronic Signature**”), including via DocuSign or other similar method, shall constitute the execution and delivery of a counterpart of this Amendment (or of a consent hereto, as applicable) by or on behalf of such person and shall bind such person to the terms of this Amendment (or the consent hereto, as applicable). The parties hereto agree that this Amendment and any additional information incidental hereto may be maintained as electronic records. Any Person executing and delivering this Amendment (or a consent hereto) by Electronic Signature further agrees to take any and all additional actions that are reasonably determined by the General Partner to be necessary or advisable to evidence such person’s intent to be bound by the terms of this Amendment (or the consent hereto, as applicable).

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IN WITNESS WHEREOF, this Amendment has been executed and delivered by the General Partner, on behalf of itself and on behalf of the Limited Partners, effective as of the date above first written to indicate its consent hereto after receiving the requisite consent of the Investor Limited Partners.

GENERAL PARTNER:

ENCAP EQUITY FUND XII GP, L.P.

By: EnCap Investments L.P., its general partner

By: EnCap Investments GP, L.L.C., its general partner

By: Jason DeLorenzo
Name: Jason M. DeLorenzo
Title: Managing Member

LIMITED PARTNERS:

ENCAP EQUITY FUND XII GP, L.P. (as attorney-in-fact on behalf of the Limited Partners)

By: EnCap Investments L.P., its general partner

By: EnCap Investments GP, L.L.C., its general partner

By: Jason DeLorenzo
Name: Jason M. DeLorenzo
Title: Managing Member